

CV-24-010203 OVIEDO TRANSPORT LLC vs CALIFORNIA TRUCK CENTERS LLC – Defendant’s Motion for Leave to File Cross Complaint – GRANTED, unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court finds that the cause of action for breach of contract alleged in the proposed cross-complaint is related to the causes of action asserted against defendant in the complaint, that defendant acted in good faith in not pleading the cause of action when defendant filed his answer to the complaint, and that leave should be granted in order to avoid forfeiture of the cause of action. (California Code of Civil Procedure §§ 426.50, 428.10). Defendant Keyes Truck Center is accordingly hereby granted leave to file its cross-complaint herein. Said cross-complaint shall be filed within seven (7) days of the date of this order.

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Defendant Keyes Truck Center is accordingly hereby granted leave to file its cross-complaint herein.

Said cross-complaint shall be filed within seven (7) days of the date of this order.